

24STCV18027 24STCV18027

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Case Number: 24STCV18027 Hearing Date: August 6, 2026 Dept: 414

24STCV18027 Rustem Orynbassar, et al. v.

Abylaikhan Abualiyev

Thursday,

August 6, 2026

[TENTATIVE] ORDER

GRANTING DEFENDANT, U-HAUL CO. OF CALIFORNIA'S MOTION FOR TERMINATING SANCTIONS
(5274)

I. BACKGROUND

This

action arises from an automobile collision between Plaintiffs and Defendants. On November 6, 2025, the court relieved counsel for Rustem Orynbassar, Plaintiff, from further representation. Plaintiff Orynbassar is the only remaining Plaintiff as co-Plaintiff, Ulan Mussayev, was dismissed. (Dism. 11/21/24.)

Defendant,

U-Haul of California, requests terminating sanctions against Plaintiff for his repeated failure to serve responses to Defendant's discovery requests and his failure to comply with multiple orders of this Court. Specifically, Defendant requests that the Court strike Plaintiff's Complaint and dismiss this action based on Plaintiff's repeated misuse of the discovery process.

Defendant

served all parties with the motion, and no opposition has been filed.

II.

DISCUSSION

The court has discretion to impose monetary, evidentiary, issue, or terminating sanctions against a party where that party fails to obey an order to provide discovery responses which is a misuse of the discovery process. (Code Civ. Proc., § 2023.030.)

Defendant

successfully obtained a Court order compelling Plaintiff to serve verified responses to form interrogatories and a request for production of documents. (M.O. 2/6/26.) The motions were unopposed, and Plaintiff did not appear at the hearing.

Plaintiff

did not serve verified responses as ordered. The Court granted Defendant's subsequent motion for terminating sanctions in part by imposing monetary sanctions as a first measure. (M.O. 4/21/26.) Defendant contends Plaintiff ignored this order as well.

III.

CONCLUSION

As

monetary sanctions do not have an effect on Plaintiff's willingness to comply with discovery obligations, Defendant's motion is GRANTED. The Court strikes Plaintiff's complaint as alleged against Defendant, U-Haul of California.